



DECISION

Complaint No. : POS/1871/2023/Adv-M

Name and address of the complainant : Mr. Farzeen Gul s/o Gul Hassan, House No. AK-6-15-23, Eastern Street No. 4, Baghdadi, Yousuf Haroon Road Karachi.

Name of the Agency Complained against : Karachi Metropolitan Corporation

Name & Designation of Investigating Officer : Mir Hussain Ali
Advisor-M

Vetted by :

Subject : DELAY IN APPOINTMENT AGAINST DECEASED QUOTA.

Complaint:

Mr. Farzeen Gul resident of house No. AK-6-15-23, Eastern Street No. 4, Baghdadi, Yousaf Haroon Road, Karachi filed his complaint against KMC on 6-3-2023, about not being appointed against deceased quota in place of his father who died on 27th September 2014, while in service of the Health Department of KMC. He requested the intervention of this Institution.

Proceedings:

2. The complaint after being admitted for investigation under Section 10 of the Establishment of the Office of the Ombudsman for the Province of Sindh 1991, was referred to the Municipal Commissioner, District Municipal Corporation, Karachi South for their comments, who reported that the matter pertains to District Municipal Corporation, Karachi East.

2. On being referred to the DMC Karachi East, the Chief Medical Officer reported vide his letter No. CMO/DMC/East 194/2023, dated 1-8-2023, that the applicant was 14 years of age when his father died on 27-9-2014 and according to the Notification issued by the Government of Sindh, the aspirant is required to apply within two years of the death of their father for appointment against deceased quota, which was not done so.

3. The Legal Advisor to the Town Municipal Corporation Chanesar referred to the, amendment in the Sindh Civil Servants ((Appointment, Promotion & Transfer) Rules 1974, whereby appointment against deceased quota has to be applied for within two years of the death of the civil servant, as per Rule 11-A

4. The complainant produced relevant decision of the High Court of Sindh dated 20-5-2021 wherein it was decided that the vested right of a person cannot be taken away retrospectively through a Notification.

5. Irrespective of the above proceedings, the matter regarding appointment against deceased quota was ordered upon by the Supreme Court of Pakistan on 26.9.2024, that this provision is in violation of the Constitution. In compliance of this order the SGA&C Department, Government of Sindh vide Notification No. SORI/(SGA&CD)2-25/2024 dated 19.12.2024, omitted the relevant Rule from the Sindh Civil Servants (Appointment, Promotion & Transfer) Rules 1974. The Law Department, Government of Sindh based on this Notification issued a circular No. D.Q.1.(12)/2024/ 220 dated 26th December 2024 declared all pending cases of appointment against deceased quota, as null and void.

8. However, on 2.9.2025, the Supreme Court decided that their order dated 26.9.2024 would be applicable prospectively and not retrospectively. In compliance of these orders of the Supreme Court of Pakistan dated 2.9.2025, the SGA&CD Department, Government of Sindh amended the Sindh Civil Servant (Appointment, Promotion & Transfer) Rules 1974 by inserting a provision through Notification No. SORI(SGA&CD)2-2/2024 dated 11.12.2025 that only those cases of deceased quota, conclusively decided by the High Court of Sindh prior to the judgement of the Supreme Court dated 26.9.2024 shall be considered under the provisions of omitted Rule 11-A.

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Findings.

10. From the above proceedings it is clear that this complaint cannot be considered on merit as decided by the Supreme Court on 26.9.2024, that such recruitment is unconstitutional. Further, this complaint does not fall within the ambit of the Notification dated 11.12.2025 issued by SGA&CD, which states that only those cases which have been conclusively decided by the High Court can be considered.

Decision.

11. As such the above findings clearly indicate that in this complaint the grievance of the complainant cannot be redressed, as appointment against deceased quota has been termed "unconstitutional" in the judgment dated 26.9.2024 of the Supreme Court of Pakistan. Therefore this complaint is consigned to record.

"Given under my hand and seal of office"

Sd/-

(Muhammad Sohail Rajput)

Sitara-e-Imtiaz, PAS

OMBUDSMAN SINDH

Karachi, dated 08th January, 2026

